

Multiple Choice (10 marks)

1. Which of the examples below has not been developed by the European Court of Human Rights as a situation where the state has a positive obligation to protect?
 - (a) When the applicant is in the custody of the state
 - (b) Where the state must investigate claims against it
 - (c) The development of a legal framework to protect those within the state
 - (d) To provide housing for all those homeless within a state
2. Which of the following arguments against the 'fair play' argument in support of a duty to obey the law is the most persuasive?
 - (a) Fairness is a relative term.
 - (b) The legal system is, in fact, unfair.
 - (c) It sets a bad example.
 - (d) The law is irrational and ambiguous.
3. Which of the following quotations best describes the central thesis of difference feminism?
 - (a) There are fundamental differences between individual women.'
 - (b) Men and women have different conceptions of the feminist project.'
 - (c) Women look to context, whereas men appeal to neutral, abstract notions of justice.'
 - (d) Men are unable to comprehend their differences from women.'
4. What does Dworkin mean by the 'semantic sting'?
 - (a) The language of the law is generally unclear.
 - (b) Lawyers' arguments usually concern language.
 - (c) Judges are prey to linguistic misunderstanding.
 - (d) The rule of recognition cannot fully account for legal validity.
5. Who says that "Social Contract is not a historical fact but a hypothetical construction of reason"
 - (a) Hobbes
 - (b) Locke
 - (c) Thomas Aquinas
 - (d) Rousseau

True / False (10 marks)

Answer True or False

6. True or False: The Critical Legal Studies School promotes market efficiency as the central goal of legal decision-making.
7. True or False: Hobbes argued that natural law is grounded in the nature of man and his inherent need to live in society.
8. True or False: Monism posits that international and domestic law are part of the same legal order.
9. True or False: The principle that punishment should fit the crime is inconsistent with a consequentialist justification of punishment.
10. True or False: The international recognition of human rights after WWII significantly contributed to the revival of natural law in the 20 th century.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Tom Regan's concept of 'sentimental anthropomorphism' and analyze how it supports the argument for animal rights within the framework of constitutional law.
12. Discuss how the postmodernist project critiques the Kantian emphasis on individual rights, equality, and justice in the context of constitutional law.

End of Paper